



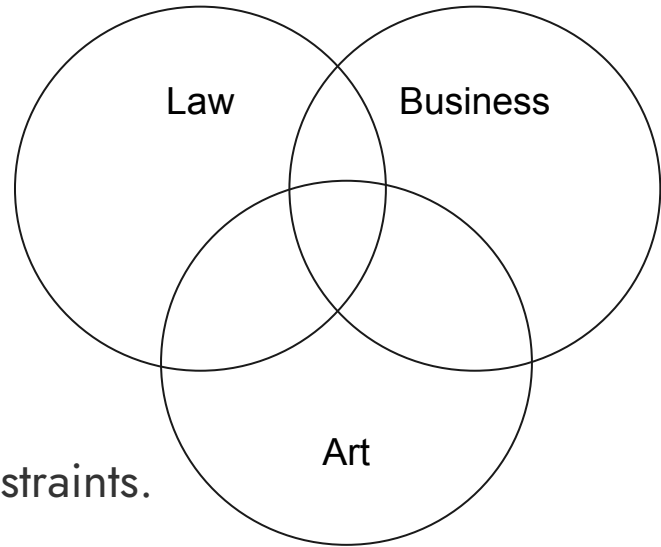
Legal Implication of Software Interface in The Context of Dark Patterns. Why it is important for lawyers?

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The Intersection Between Law, Business, and Art

1. Business - first.
2. Art - reflects business ideas
3. Law - shapes the model and provides constraints.



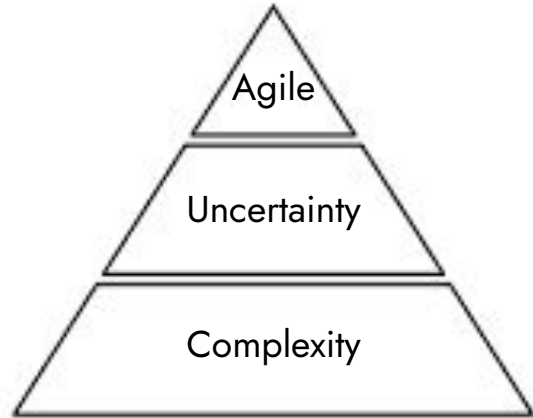
**Why this knowledge matters
for in-house lawyers or law
firm consultants?**

—



Joint Work is of Huge Importance

From unlimited knowledge to
flexible business processes



What are the dark patterns in design?



Dark Patterns. Phishing for Fools

Dark Patterns are tricks used in websites and apps that make you do things that you didn't mean to, like buying or signing up for something.

Dark patterns are carefully crafted with a solid understanding of human psychology: cognitive science and human behavior. They are used to benefit the company behind them, for purposes such as obtaining legal consent to process and sell personal data, increase sales and increase subscribers.

Their task is to influence the user's decision in favor of the controller with the help of certain design tricks.

Personal Data and Design



Core Concept of User's Consent

Consent **is any freely given, specific, informed** and unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her **under Art. 4 (11) of GDPR**

Processing shall be lawful only if and to the extent that at least one of the following applies - (a) the data subject **has given consent** to the processing of his or her personal data for one or more specific purposes - Art. 6 p. 1.



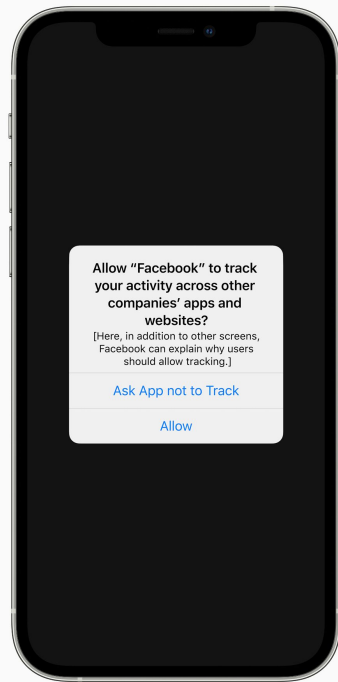
User's Consent. Art. 7 GDPR

*If the data subject's consent is given in the context of a written declaration which also concerns other matters, the request for consent shall be presented in a manner which **is clearly distinguishable from the other matters, in an intelligible and easily accessible form, using clear and plain language**. Any part of such a declaration which constitutes an infringement of this Regulation shall not be binding.*

*When assessing **whether consent is freely given**, utmost account shall be taken of whether, inter alia, **the performance of a contract**, including the provision of a service, **is conditional on consent to the processing of personal data that is not necessary for the performance of that contract**.*

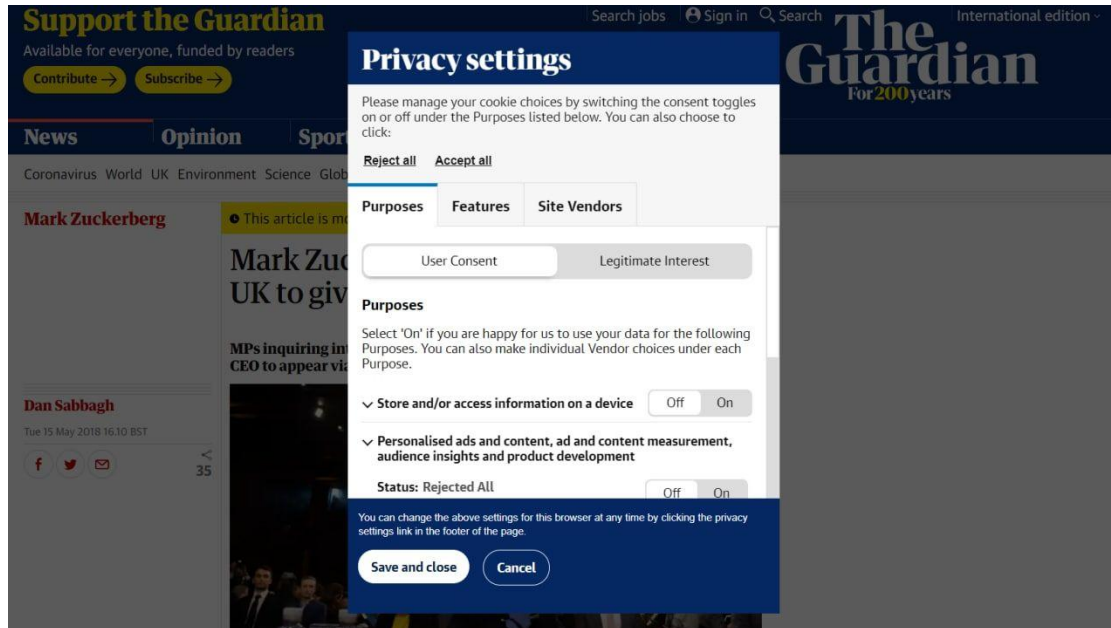
Global Trends in Personal Data Management Design

Starting with iOS 14.5, iPadOS 14.5, and tvOS 14.5, app developers need to receive the user's permission through the AppTrackingTransparency framework to track them or access their device's advertising identifier. Tracking refers to the act of linking user or device data collected from developer's app with user or device data collected from other companies' apps, websites, or offline properties for targeted advertising or advertising measurement purposes.



What can go wrong?

Manipulation Example #1. Tabs with additional consent



The banner is designed not to see the tabs except cookies and accept everything. Economy of thinking and rational ignorance: research shows that 95% of people do not change their initial settings, this is too much cognitive effort

Another example

01:50 C6 6 нояб.

67 %

About Your Privacy

We process your data to deliver content or advertisements and measure the delivery of such content or advertisements to extract insights about our website. We share this information with our partners on the basis of consent. You may exercise your right to consent, based on a specific purpose below or at a partner level in the link under each purpose. These choices will be signaled to our vendors participating in the Transparency and Consent Framework.

[Click here to see our cookie policy.](#)

Vendors List

Allow All

Manage Consent Preferences

Store and/or access information on a device



Select basic ads



Measure content performance



Select personalised ads



Create a personalised ads profile



Use precise geolocation data



Select personalised content



Create a personalised content profile



Confirm My Choices

01:51 C6 6 нояб.

67 %

Select personalised ads



Create a personalised ads profile



Use precise geolocation data



Select personalised content



Create a personalised content profile



Apply market research to generate audience insights



Develop and improve products



Measure ad performance



Actively scan device characteristics for identification



Ensure security, prevent fraud, and debug

Always Active



Technically deliver ads or content

Always Active



Match and combine offline data sources

Always Active



Link different devices

Always Active



Receive and use automatically-sent device characteristics for identification

Always Active



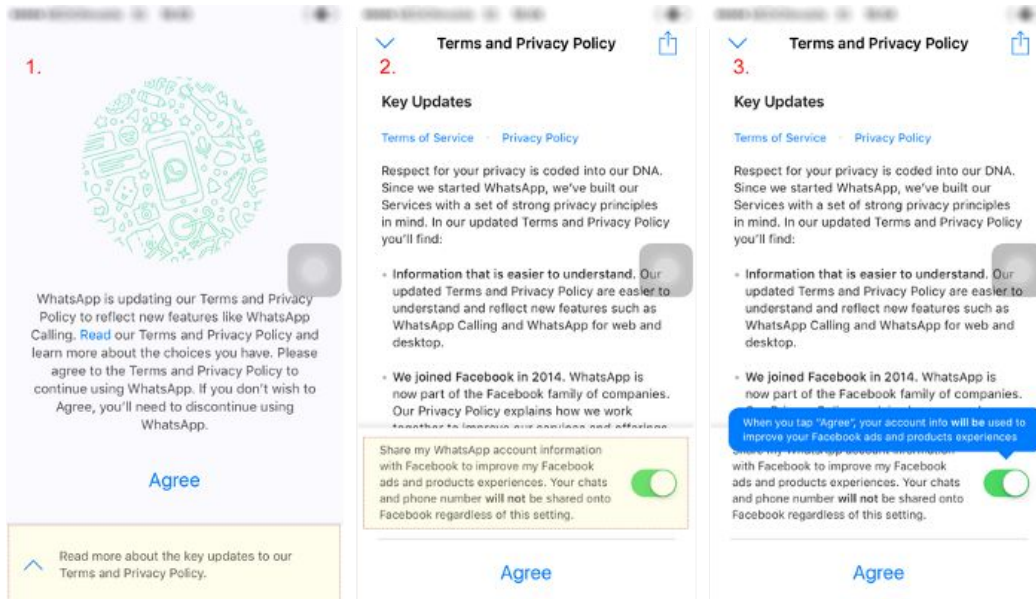
NBA Strictly Necessary Cookies

Always Active



Confirm My Choices

Manipulation Example #2. No Mentioning Data Use



This pattern encourages the sharing of personal data in such a way that private personal data becomes public.

When you use a service (such as a store purchase), the fine print hidden in the Terms gives them permission to sell your personal information to anyone.



Manipulation Example #3. Fast clicking

Manipulation happens when services use common heuristics in the user stories. Blue or green colour is considered as colours of correct behaviour.



Help us improve MetaMask

MetaMask would like to gather usage data to better understand how our users interact with the extension. This data will be used to continually improve the usability and user experience of our product and the Ethereum ecosystem.

MetaMask will..

- ✓ Always allow you to opt-out via Settings
- ✓ Send anonymized click & pageview events
- ✗ **Never** collect keys, addresses, transactions, balances, hashes, or any personal information
- ✗ **Never** collect your full IP address
- ✗ **Never** sell data for profit. Ever!

No Thanks

I Agree

This data is aggregated and is therefore anonymous for the purposes of General Data Protection Regulation (EU) 2016/679. For more information in relation to our privacy practices, please see our [Privacy Policy here](#).

Some More...



We value your privacy

By clicking Yes, I agree, you agree to Ryanair using tracking technology to improve your browsing experience, to personalise content, to provide social media features and to analyse our traffic. We may also share information with our advertising, analytics and social media partners for their own purposes. You can manage these settings through 'View Settings' or see our [Cookie Policy](#) for more information.

Yes, I agree

[View preference settings](#)

Adaware Web Companion

Важное обновление безопасности

Программа Ad-Aware Web Companion обновилась до последней версии, которая обеспечивает актуальную веб-защиту от вредоносных программ, фишинг-мошенничества и опасных веб-сайтов.

Secure your search

Web Companion recommends the installation of Yandex Search as search engine to enhance your compatible browsers with a better and secured experience. Your default search engine will be set to Yandex Search on compatible browsers.

Нажимая "Завершить", вы принимаете эти параметры поиска, а также условия [Лицензионное соглашение](#) and [Политика Конфиденциальности](#).

Пропустить

Завершить

Please review our [Terms of Use](#) and [Privacy Policy](#).

- We do not collect demographic data such as age or gender.
- We collect anonymized app usage data and crash reports to ensure the quality of our app.

[Privacy Policy](#)

[Terms of Use](#)

Agree

Agree without Sharing Usage Data



How Regulators Approach The Problem

CCPA is based on an opt-out cookie consent regime. Website publishers can only load non-essentials cookies once they have displayed the cookie notice consisting of relevant information about the use of cookies.

Organizations must allow users to opt-out of the sale of their personal information by displaying a clear message and prominent link titled “Do Not Sell My Personal Information” enabling users to opt-out of the sale of their information

Advertisement and Design

Advertisement. Customers' Manipulation

1. Contextual and preview ads
2. Attempts to capture our attention
3. Banner blindness is developing

Search Engine Land SEO SEM MOBILE LOCAL RETAIL GOOGLE BING SOCIAL MORE EVENTS

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E-commerce category pages outperform product detail pages in SERPs

New data finds category page optimization is a valuable area to prioritize to boost your organic search rankings and traffic.

Jill Brown on February 20, 2020 at 1:54 pm



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E-commerce category pages represent a larger opportunity for ranking and driving organic search traffic than product detail pages, according to [research unveiled at SMX West 2020](#) on Thursday.

Manipulation Example #1. Incorrect Representation

The ad that reflects actual gameplay



The ad that is different from the actual gameplay





The UK Regulator Comes into Play

Despite the fact that the advert contained a warning at the bottom stating that “not all images represent actual gameplay”, the ASA agreed with the complaints that were made. Following the ruling, Playrix is unable to produce similar adverts again. Bailey has suggested that “the ASA’s recent ruling on the topic will send an even stronger message to other game makers about their use of misleading ads”. Not only is Playrix now prevented from publishing misleading adverts, but other game developers are also likely to take note of the ASA’s action.

E-com and Design

Manipulation Example #1. Additional Services

ZSL London Zoo Guide Book

ADD TO BASKET +

SUPPORT WILDLIFE WITH A 10% DONATION

Did you know ZSL is a wildlife conservation charity?

As a nonprofit organisation, we kindly ask you include a **10% donation** in the price of your ticket to help us continue our vital conservation work around the world.

Including this small amount and selecting the Gift Aid option at the checkout means we can treat your whole ticket purchase as a donation and claim an extra 25p for every £1 spent - at **no extra cost** to you or us.

ADD TO BASKET
without donation

ADD TO BASKET
with donation

If you are not a UK tax payer your donation will still help ZSL work for wildlife.

Your Basket



Recipient
Yourself

Chosen Date
Saturday 11th March 2017

Tickets
2 × Adult (£24.30) ⓘ Edit ✎

Discount code

ACTIVATE

To pay today: £48.60

An attempt to manipulate with a sense of lost profit. By refusing, the user will miss the opportunity to purchase something at a discount and "save" money. And they highlight with a calming and pleasant color, hinting at the "correct option"

Manipulation Example #2. Hidden Prices

The image shows a two-part checkout process. The first part is a modal titled "Add to Your Cart" for "Pink Roses, 18 stems - with Clear Vase". It lists item details, quantity, price (\$54.99), and delivery date. The subtotal is circled in blue and labeled "Subtotal: \$54.99". The second part is a checkout summary showing the breakdown of costs: Merchandise (\$54.99), Surcharge (\$7.99), Shipping Charge (\$14.99), Total Before Tax (\$77.97), and Estimated Tax (\$5.97). The final "Order Total" is circled in blue and labeled "\$83.94". An arrow points from the subtotal in the first modal to the order total in the second. Both modals have a "Place order" button at the bottom.

Add to Your Cart

1 item(s) in cart

Pink Roses, 18 stems - with Clear Vase
Item #: 1001323901-123
Quantity: 1001323901-123
Price: \$54.99 \$54.99
Earliest Delivery: Thursday Feb. 8

Subtotal: \$54.99
(Subtotal excludes shipping, and tax)

Checkout

Merchandise: \$54.99
Surcharge: \$7.99
Shipping Charge: \$14.99
Total Before Tax: \$77.97
Estimated Tax: \$5.97

Order Total: \$83.94

Place order

By clicking the "Place Order" button I agree to be bound by the [Terms of Use](#) and [Privacy Policy](#).

Users go through a multi-step checkout process but find out at the very end that there are additional fees, such as taxes or shipping charges. Most leave the cart, but some, in view of the time spent and the already existing disposition to have something, end up buying it.

Manipulation Example #3. Various Prices for Different Payment Instruments

Wildberries service decided to depreciate Visa and Mastercard by creating two different prices for foreign and domestic cards. They hide it in “discount section.

Выбрать способ доставки

1 товар на сумму	3 245 ₽
Сумма скидок при  	-889 ₽
Сумма скидок при   	-935 ₽
Доставка	Бесплатно
К оплате	2 310 ₽



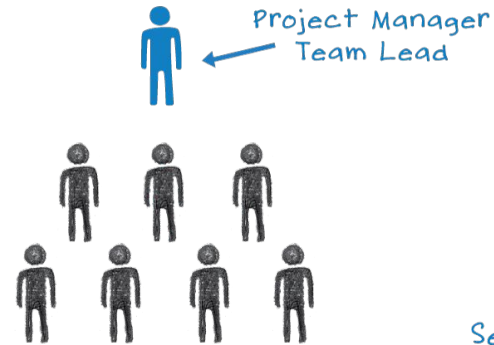
How Regulators Tackle This Problems?

1. CCPA **bans** dark patterns
2. E-Directive & E-privacy Regulations, GDPR, Unfair Contract Terms Directive
3. CNIL has adopted **new guidelines** for read and write operations on a user's device (including cookies and other trackers) and **recommendations** concerning the collection of Internet user consent for carriers using "cookies and other trackers"
4. App Store and Google Play instantly publish new rules on disclosure of applications' functionality

**How lawyers can manage
design problems?**

Project Methodology Matters

Traditional Teams

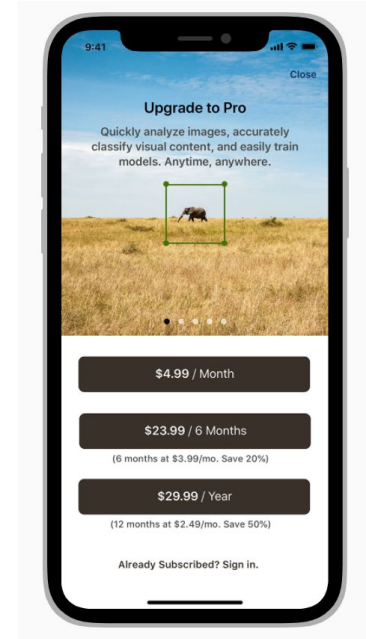


Agile Teams





Do Not Hesitate to Be Involved in Non-legal Operations. Observe Good Practices





Pay Attention to Design Patterns

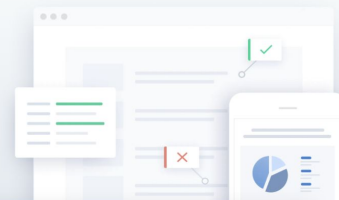
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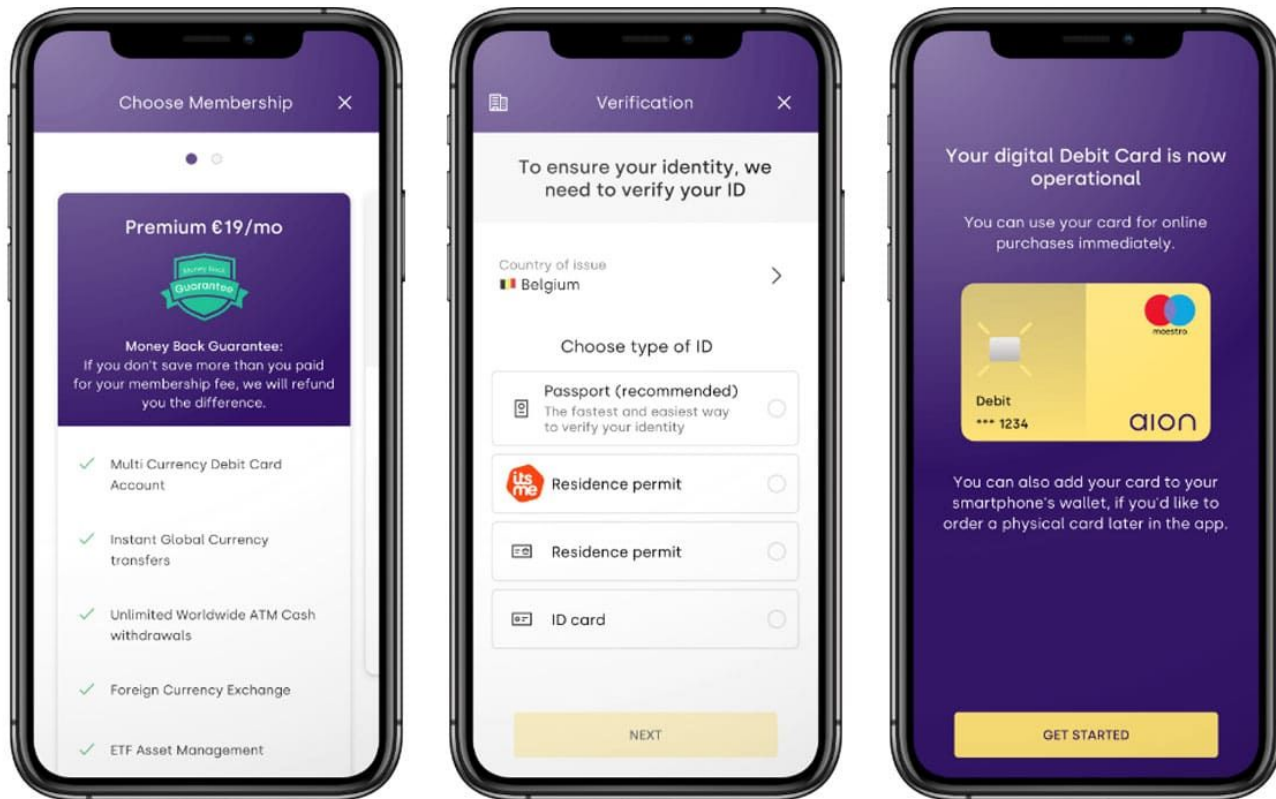
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